

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MAGNOLLY BAUTISTA,

Petitioner

VS.

FRANKLIN MICHAEL TAMAYO ALVAREZ,

Respondent

) Case Number: FDV-25-818754

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Magnolly Bautista (Mother) and Respondent Franklin Michael Tamayo Alvarez (Father). They share one minor child: Thiago (DOB: 4/12/15).
- 2) On 11/7/25, Mother filed a Request for Domestic Violence Restraining Order (DVRO). Mother also checked the box for child support in her DVRO request.
- 3) On 12/31/25, the Court granted a Restraining Order After Hearing for a period of one-year wherein Mother is the protected party and Father is the restrained party. The restraining order grants Mother sole legal and physical custody of Thiago and provides that Thiago will be in Father's care on alternative weekends, Saturdays and Sundays from 10 AM to 5 PM.
- 4) At the 7/9/26 hearing (Findings and Order After Hearing filed 9/1/2026), the Court ordered Father to pay Mother \$674 per month in child support commencing 7/1/2026 (based on Mother's proposed XSpouse calculation attached to her 5/21/26 declaration) and reserved jurisdiction to recalculate child support to 11/7/2025 (the date Mother filed her Request for DVRO). The Court notes that Mother's proposed XSpouse calculation includes Mother's self-reported monthly

1 income of \$3,024, imputation of San Francisco full-time minimum wage income of \$3,399 per
2 month, to Father and a 4% timeshare for Father. A review hearing was set for 8/19/26, which
3 was later continued to 9/24/26.

4 5) On 7/29/26, Mother filed an Income and Expense Declaration. Mother states she is 27 years old
5 and is employed at Azuncion Limpieza as a domestic worker. Mother works 24 hours per week
6 and earns \$360 per week. Last month Mother earned \$1,440. The Court notes these figures differ
7 from the \$3,024 in average monthly income Mother reported earning in her declaration filed
8 5/21/2026. Mother states Father's income is unknown. Mother has \$0 in her cash and checking
9 accounts. Mother's monthly estimated expenses total \$2,815. Mother states the parties' son is in
10 her care 96% of the time. Mother did not attach any documentation regarding her pay to her
11 Income and Expense Declaration.

12 6) On 8/06/26, Father filed an Income and Expense Declaration. Father is 33 years old and has
13 been employed as an independent contractor for Amazon since 10/26/2025. Father works 20
14 hours per week and is paid \$2,000 per month. Father states his monthly income on average is
15 \$2,000. Father states that he earns average monthly bonuses of \$8,260. Father asserts there has
16 been a change in his income. Father states he lost his previous job and is now working as an
17 independent contractor. Father states his wages vary every week because his hours are
18 inconsistent. Father claims Mother earns \$24.26 per hour and has a monthly gross income of
19 \$3,913.60. Father states he has \$1,073 in cash savings and \$10,000 in personal property.
20 Father's states that his estimated and actual monthly expenses total \$3,555. Father states his total
21 debts are \$22,000. Father states he has bi-weekly visits with Thiago on Saturday and Sunday
22 from 8:00 AM to 5:00 PM. Father did not attach documentation but states he will bring paystubs
23 to the next scheduled court date if Father is working.

24 7) There is no proof of service on file evidencing Mother was served with Father's Income and
25 Expense Declaration.

26 **B. Findings and Order**

27 1) The Court does not find good cause to modify its prior order requiring Father to pay Mother \$674
28 per month in guideline child support in accordance with the XSpouse calculation attached to
29 Mother's 5/21/26 declaration, which includes an imputation of full-time minimum wage income

1 to Father. Father shall continue to pay Mother \$674 per month in guideline child support by the
2 1st of each month.

3 2) The Court finds good cause to maintain the imputation of full-time minimum wage income to
4 Father. The Court finds that Father has the ability and opportunity to earn full-time minimum
5 wage income, and this order is in the child's best interests, considering that the child is in Father's
6 care only 4% of the time.

7 3) The Court makes the child support order effective 11/7/2025 (the date Mother filed her Request
8 for DVRO). The Court finds that Father owes to Mother child support arrears in the amount of
9 \$5,235 for the period 11/7/2025 – 6/30/2026. Commencing 10/1/2026, Father shall pay Mother an
10 additional \$218.13 per month by the 1st of each month for a period of 24 months to satisfy these
11 arrears.

12 4) Based on the foregoing, Father shall pay Mother $\$674 + \$218.13 = \$892.13$ per month by the 1st
13 of each month between 10/1/2026 – 10/31/2028, and \$674 per month by the 1st of each month
14 commencing 11/1/2028.

15 5) The Court will prepare the Findings and Order After Hearing.
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